

****Well the AI Act is good but the road is long: speed and an independent Authority are needed****
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The European institutions recently reached a political agreement on the AI Act, the European Regulation intended to govern the design, development, production, distribution, and use of services and devices based on artificial intelligence.

However, it would be a mistake to speak of the “approval” of the Regulation on artificial intelligence because the road is still long and, although unlikely, setbacks cannot be ruled out.

An important step has certainly been taken towards a “strong” regulation of the impact of artificial intelligence on society, and this is good news. However, it is too early to express judgments that risk being contradicted in the coming months, those that separate us from the finalization and definitive approval of the text and, later on, from a series of choices that the European provision seems to leave to the discretion of individual member states.

The devil, which is always in the details, is indeed very skilled at hiding in the folds, among the words, and sometimes – it is not hyperbole – even among the punctuation marks.

It is good, therefore, the enthusiasm with which the positive conclusion of the so-called trilogue has been welcomed across Europe, but now, it is crucial not to let our guard down, to maintain the pace – especially since the end of the legislature is near – and, above all, it is essential not to consider the matter closed because there is still much work to be done and, especially, it will take two years from its final approval and entry into force before the Regulation is truly law, directly applicable throughout Europe.

On the many reasons that inspire cautious optimism, much has already been written, also due to the understandable satisfaction with which the European institutions have presented them to the world.

It is therefore worth highlighting some aspects that suggest, instead, caution and attention in the choices still on the table. In this perspective, one of the most delicate aspects concerns the use by governments of devices and services based on artificial intelligence, particularly for police and justice purposes.

It is no secret that the tension during the final phase of negotiations was extremely high: some governments, including ours, defended until the last moment the need to reserve a wide margin of action in the use of AI for the pursuit of their goals, from combating crime to maintaining public order, including justice. In short, they defended the idea that, in the public sphere, the legitimacy and nobility of the ends could legitimize the use of means that are otherwise less intelligent and capable of supporting the achievement of certain objectives, even at the cost of significant sacrifices in terms of rights and freedoms.

In the end, fortunately, this thesis did not hold, and the European institutions, with Parliament at the forefront, maintained their position, simply allowing for some exceptions.

Now, of course, the definition of these exceptions is fundamental to avoid the risk that overly loose or too open definitions to the discretion of individual countries end up frustrating the principle that has been established and allow what has been kept out the door to come back in through the window.

In Europe, we cannot and must not yield to the idea that everything that is technologically possible must also be considered legally legitimate and democratically sustainable. Doing so would mean renouncing over a century of achievements in terms of fundamental rights and freedoms.

Another significant uncertainty that apparently remains on the negotiation tables concerns the identification, at the national level, of the entity responsible for overseeing the application of the new rules.

Here, it is worth being very direct, even at the cost of offending someone’s sensibilities: this entity must be an independent Authority, both from the markets and from the governments, because both will be

regular users of artificial intelligence services and systems and both could find themselves violating the new rules, succumbing to technological temptation and prioritizing results over respect for rights and freedoms.

A government agency could not, in any case, possess the necessary independence, especially from the Executive, and would risk not being a sufficiently impartial arbiter. This, of course, does not mean that one cannot think of a government agency for the promotion of the lawful use of artificial intelligence, while leaving to an independent Authority the task of overseeing compliance with the rules.

Another important issue finally concerns the timeline for the entry into force of the AI Act and its final approval.

In the best-case scenario, for the new rules to be definitively approved and become directly applicable in all EU countries, it will take until the spring of 2026. Over two years that correspond, at the current pace of development in the field of artificial intelligence, to a geological era during which we will face applications and services based on AI that are currently simply unimaginable.

It is therefore essential to hurry to identify, at least at the national level, the entity or entities to which the application of the new rules will be entrusted.

of the new rules, delegating them to govern, in the meantime, the sector, keeping in mind the principles that will meanwhile be outlined in the text of the new regulation.

Failing this objective could mean finding ourselves in a couple of years with the best rules in the world but too late to have any concrete chance of steering artificial intelligence, both in the public and private sectors, in the direction of maximizing collective well-being.